

performed in connection with the borrower's default, including attorney fees, under section 14. As we have explained, the trust deed is properly read (only) to permit attorney fees to be added to the borrower's promissory note obligation, and the terms of the trust deed itself are all the “authority” that is necessary under the circumstances.

(*Chacker, supra*, 27 Cal.App.5th at 357.)

Like the provisions in *Hart* and *Chacker*, the purported attorney's fees provision in the Deed of Trust at issue here states: “If Borrower fails to perform the covenants and agreements contained in this Deed of Trust, or if any action or proceeding is commenced which materially affects the Lender’s interest in the Property, then Lender, at Lender’s option, upon notice to the Borrower, may make such appearances, disburse such sums, including reasonable attorneys’ fees, and take such action as is necessary to protect Lender’s interest... *Any amounts disbursed by Lender pursuant to this paragraph 7, with interest thereon, at the Note rate, shall become additional indebtedness of Borrower secured by this Deed of Trust...*” (RFJN, Ex. A.)

As stated in *Hart* and *Chacker*, this is not a provision pursuant to which attorney's fees are awarded as required for the recovery of attorney's fees pursuant to Civ. Code § 1717. (*Hart, supra*, 27 Cal.App.5th at 327; *Chacker, supra*, 27 Cal.App.5th at 357.)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2405296	MCCONNELL VS THE BANK OF NEW YORK MELLON.	MOTION TO COMPEL NONPARTY NON-DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION, SET ONE

Tentative Ruling: Hearing continued to 8/4/26.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600117	SMITH VS RIVERSIDE UNIFIED SCHOOL DISTRICT	HEARING ON ANTI-SLAPP MOTION (SPECIAL MOTION TO STRIKE)

Tentative Ruling: Defendant’s UNOPPOSED Special Motion to Strike (Anti-SLAPP) pursuant to CCP §425.16 is granted. Plaintiff’s Complaint is stricken in its entirety.

Defendant is awarded Attorney’s Fees AGAINST Plaintiff in the amount of \$2,800 (8 hours at \$350/hour).

REQUESTS FOR JUDICIAL NOTICE

Court Grants Defendant’s requests for judicial notice of three documents.